

Law of Equity and Trusts (EQT1)

Module 1: Foundations of Equity

Lesson 3: Concurrent Administration of Law and Equity

Lesson Notes

KMVTECHUG

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Concurrent Administration under the Judicature Act Cap 16

Section 14 of the Judicature Act Cap 16 requires Ugandan courts to administer common law and equity concurrently. Section 14(2)(b) and 14(4) provide that where the rules of common law and equity conflict, the rules of equity shall prevail.

This is the statutory foundation for fused administration. There is one court, one set of proceedings, and a hierarchy that prefers equity in case of conflict.

Key idea: In Uganda, equity prevails over common law when they conflict — by express statutory command in Cap 16.

What Concurrent Administration Means in Practice

A claimant may plead legal and equitable claims together. The court may award damages (legal) and an injunction (equitable) in the same judgment. Defences that are equitable in origin (such as clean hands or laches) can be raised against claims for equitable relief.

The court retains discretion in granting equitable remedies. Even where a legal right is established, an injunction or specific performance may be refused if damages are adequate or if the claimant's conduct disentitles them to equitable relief.

Reflect: Why might a court refuse specific performance even where a valid contract is proved?

Equity and Customary Law

Uganda's legal system also recognises customary law. The interaction between equity and customary norms can arise in land and family disputes. Courts must navigate statutory equity, received common law, constitutional values, and customary practices.

Article 126 of the Constitution and the Judicature Act frame how courts balance these sources. Substance over form and the duty to do justice without undue technicality remain guiding ideas.

Practical Ugandan Illustrations

Land disputes often require the court to consider registered title under Cap 240 alongside possible equitable interests (for example, a purchaser's lien or a constructive trust claim by a contributing partner). Concurrent administration allows the court to recognise both the legal title and the equitable claim in one proceeding.

Commercial injunction applications (drawing on American Cyanamid and local authority such as Kiyimba Kaggwa) are another everyday example of equitable relief being granted within the ordinary civil process.

Key Takeaways

- Judicature Act Cap 16 requires concurrent administration; equity prevails in conflict.
- Legal and equitable claims and defences can be dealt with in one action.
- Equitable remedies remain discretionary.
- Customary law, statute and equity may all be relevant in land and family cases.

Statutes and Provisions to Cite

Judicature Act Cap 16, s.14

Concurrent administration; equity prevails in conflict.

Constitution Art. 126(2)(e)

Substance over form; justice without undue regard to technicalities.

Registration of Titles Act Cap 240

Registered title and its limits vis-à-vis equitable interests.

Quick Revision Checklist

- ☐ I can cite Cap 16 as the source of concurrent administration.
- ☐ I can explain what happens when law and equity conflict.
- ☐ I can give one example of legal and equitable claims in one case.
- ☐ I understand that equitable remedies are discretionary.
- ☐ I can outline how equity may interact with customary land claims.

Bridge to Module 2

With foundations, maxims and concurrent administration in place, Module 2 turns to the principal equitable remedies: specific performance, injunctions, rescission, rectification and related relief, and the defences that may block them.

Key idea: Every remedy lesson that follows assumes you understand that Equity is available in the same court as common law, and that it prevails in conflict under Cap 16.